

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JENNIFER WEI CHENG,

Petitioner

VS.

TOM YEH,

Respondent

) Case Number: FDI-25-801487

) Hearing Date: August 6, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: BIFURCATE AND TERMINATE MARITAL STATUS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Jennifer Wei Cheng (Mother) and Respondent Tom Yeh (Father) married on 11/3/2003. Mother contends the parties separated on 12/20/2020, for a marriage of 16 years and 1 month. Father contends the parties separated on 5/16/2025, for a marriage of 21 years and 6 months. The parties have two minor children, Hampton (DOB: 11/22/2008, age 17) and Harrington (DOB: 8/28/2010, age 15). Mother is represented by attorney Leon Jew. Father is self-represented.
- 2) On for hearing is Mother's Request for Order filed 2/17/2026 asking the Court to bifurcate and terminate the parties' marital status. The Court notes that in the Request for Separate Trial (FL-315) attached to her Request for Order, Mother included no information under the prompt, "All pension or retirement plans in which the community has an interest are listed below or on attachment 1e(2)." However, the Court also notes that on 9/29/2025, Mother filed a Response to Father's Request for Form Interrogatories, Set One. Mother attached to this pleading a Schedule of Assets and Debts signed by Mother under penalty of perjury which lists the following items

1 under the section for “retirement and pensions”: Madison IRA (“SP”) and Madison Roth (“SP”).
2 Mother also stated in this pleading that tax returns for 2023 and 2024 “were not filed yet due to
3 Asking Party’s lack of cooperation to fully disclose his income.”

4 3) On 2/25/2026, Mother filed a Supplemental Declaration stating she would like her former name
5 restored to “Jennifer Wei Cheng.”

6 4) On 4/9/2026, Father filed a Responsive Declaration asking the Court to deny Mother’s request.
7 Father states Mother has “never produced any tax returns, paystubs, or account statements
8 required for the Preliminary Declaration of Disclosure.” Father also states, “Petitioner lists 2
9 pensions in her Schedule of Assets & Debts and has not joined those plans to this action. I request
10 that they be joined and that I be named beneficiary of both plans.” Father further states,
11 “Respondent to be assigned & granted a 50% interest in Petitioner’s Madison IRA & Madison
12 Roth (listed on Petitioner’s Schedule of Assets & Debts dated 7/21/2025).” Father also asks the
13 Court to order Mother to “restore and pay for Respondent’s health insurance,” and order Mother
14 to “return to my mother the property described in my supporting Declaration. Petitioner does not
15 deny this property belongs to my mother.” The Court notes that although Father references a
16 supporting declaration in his Responsive Declaration, no supporting declaration is attached to
17 Father’s Responsive Declaration nor was a supporting declaration separately filed.

18 5) At the prior 4/16/2026 hearing, the Court set a future hearing date of 6/30/2026 and ordered
19 Mother to file and serve: (a) an updated Request for Separate Trial (FL-315) which lists any and
20 all pension or retirement plans in which the community has an interest or which states “none,” (b)
21 an updated Schedule of Assets and Debts (FL-142) which includes as an attachment the latest
22 statements for each financial account included, and (c) an updated Income and Expense
23 Declaration (FL-150) which includes as an attachment Mother’s last two months of paystubs.

24 6) On 6/15/2026, Mother filed and served an update declaration, an updated Income and Expense
25 Declaration, an updated Declaration Regarding Service of Preliminary Declaration of Disclosure,
26 and proofs of service indicating service of these documents on Father. Mother states she has
27 “available statements for some financial accounts.” Mother states Father has not produced his
28 financial disclosures or responded to her requests for discovery.
29

1 7) On 6/23/2026, Father filed a Declaration stating he still has incomplete information regarding
2 Mother's income and assets and that the parties' date of separation remains in dispute. Father
3 states, "The Court previously considered Petitioner's request for bifurcation and determined that
4 additional disclosure was required before such relief should be granted. Petitioner now asks the
5 Court to grant the same relief while the ordered disclosure process remains materially incomplete.
6 Granting bifurcation under these circumstances would effectively reward incomplete compliance
7 and deprive me of information necessary to protect my rights regarding property characterization,
8 tax liabilities, retirement assets, digital assets, reimbursement claims, and the disputed date of
9 separation." Father asks the Court to make the following orders:

- 10 a. Deny the request without prejudice or continue it for approximately 30 days and direct
11 Mother to serve, within 10 days, the following limited materials necessary to complete
12 the disclosure record and frame appropriate protective orders:
- 13 i. A rental schedule for each income-producing property showing gross receipts,
14 cash expenses, debt service, and net income;
 - 15 ii. Two years of profit-and-loss statements for each self-employed business, or the
16 applicable Schedule C from the latest filed return, together with identification of
17 the business producing the income reported on FL-150;
 - 18 iii. A written identification of each federal and state tax year filed or unfiled since
19 2022, copies of all returns filed within the applicable disclosure period, and
20 records sufficient to explain the disclosed 2023 Franchise Tax Board liability;
 - 21 iv. Current complete statements, account-opening applications, initial-funding
22 records, Forms 5498 and 1099-R, and reasonably available contribution, rollover,
23 transfer, transaction-history, and tracing records for the Madison IRA, Madison
24 Roth IRA, Fidelity, Coinbase, Kraken, Prana Trust, and each other account for
25 which separate-property status is asserted; and
 - 26 v. A complete list of all retirement plans and IRAs, current balances, plan
27 administrators or custodians, and beneficiary designations, so the Court can
28 determine joinder and provisional-order requirements.
- 29

- 1 b. If the Court grants bifurcation now, the Court should enter a written order, including
2 Judicial Council forms FL-347 and FL-348 where applicable, that:
- 3 i. Makes no finding concerning the date of separation or the character, value,
4 ownership, tracing, reimbursement, or division of any asset or debt, and
5 expressly reserves all remaining issues;
- 6 ii. Provides the tax indemnity, health-insurance, retirement, Social Security,
7 beneficiary, probate, individual-retirement-account, and enforcement protections
8 authorized by Family Code section 2337;
- 9 iii. Preserves and secures each party's disputed community interest in retirement,
10 brokerage, digital-asset, trust, and other financial accounts pending final
11 adjudication;
- 12 iv. Prohibits sale, transfer, refinance, further encumbrance, or disposition of 2225
13 Rivera Street and 18792 Galton Lane, or distribution of proceeds relating to those
14 properties, absent written agreement or further court order; and
- 15 v. Requires Petitioner, as the moving party, to prepare, serve, and lodge the
16 proposed status judgment and all protective orders for review before entry.
- 17 8) At the prior 6/30/2026 hearing, following a hearing, the Court adopted its Tentative Ruling and
18 ordered the following:
- 19 a. Mother's Request for Order filed 2/17/2026 is continued a second time to Thursday,
20 9/3/2026 at 9:00 AM in Dept. 404.
- 21 b. At least 20 calendar days prior to the next hearing date, Mother shall file and serve a
22 declaration to which she attaches an updated Request for Separate Trial (FL-315) which
23 lists any and all pension or retirement plans in which the community has an interest. If
24 Mother contends the community has no interest in any pensions or retirement plans, she
25 may write "none." Mother's declaration must also include a list of statements she was not
26 able to include with her second declaration of disclosure, as Mother stated her second
27 disclosure contained available statements for some (but not all) financial accounts. If
28 those statements become available to Mother prior to the next hearing date, Mother shall
29 have those additional statements served on Father.

- 1 c. At least 20 calendar days prior to the next hearing date, Mother shall also file and serve
2 an updated Income and Expense Declaration which includes as attachments:
- 3 i. A schedule showing gross receipts less cash expenses for each piece of rental
4 property;
- 5 ii. A profit and loss statement for the last two years or a Schedule C from Mother's
6 last federal tax return for her business.
- 7 d. All other requests for documents requested by Father are denied as the Court does not
8 find that those documents are required to be served as part of Mother's Preliminary
9 Declaration of Disclosure under Family Code section 2104, and therefore those
10 documents are not required to be served before the Court can bifurcate and terminate
11 marital status under Family Code section 2337(b). If Mother does not provide the
12 additional requested information to Father voluntarily, Father may serve discovery
13 requests.
- 14 e. At least 10 calendar days prior to the next hearing date, Father may file and serve another
15 update declaration.
- 16 9) On 7/21/2026, Mother filed a Request for Order which is calendared for 10/13/2026 at 9:00 AM
17 in Dept. 404. Attached to Mother's new Request for Order is a Request for Separate Trial (FL-
18 315) wherein Mother responded to the prompt: "All pension or retirement plans in which the
19 community has an interest are listed below..." with "NONE. Each party has an IRA established
20 prior to marriage; asserted to be separate property; no community interest claimed. Petitioner has
21 Madison IRA and Madison Roth IRA. Respondent has Fidelity IRA and Fidelity Roth IRA."
22 Also attached to Mother's new Request for Order is a Supplemental Declaration that Mother
23 states she is submitting "in response to the Court's June 30, 2026 Tentative Ruling and in support
24 of my Request for Separate Trial to bifurcate and terminate marital status." Mother states:
25 "Pursuant to the Court's June 30, 2026 Tentative Ruling, I have prepared and attached Exhibit A,
26 consisting of my 2024 and 2025 Rental Profit and Loss schedules, which show the gross rental
27 receipts, rental expenses, and resulting cash flow for my rental property, in compliance with the
28 Court's request... I have also attached Exhibit B, which contains summaries of my 2024 and 2025
29 income and expenses relating to my work income. These summaries reflect the information

1 currently available to me and are submitted in good faith to assist the Court in evaluating my
2 financial circumstances...My request seeks only to terminate the parties' marital status. I am not
3 requesting that the Court divide property, determine reimbursement claims, characterize assets, or
4 resolve any financial disputes at this time. I have already requested in my FL-315 that the Court
5 impose all protective conditions authorized under Family Code section 2337, including
6 protections relating to retirement benefits, health insurance, tax consequences, Social Security
7 benefits, beneficiary designations, probate rights, and enforcement of community property rights.
8 Those statutory protections adequately preserve both parties' interests while allowing the marital
9 status to be terminated... I believe I have substantially complied with the Court's June 30,
10 2026 Tentative Ruling by providing the requested rental schedules and updated financial
11 information. The remaining disputes involve property characterization and financial issues that
12 can be resolved through discovery and future proceedings. Granting bifurcation will not prejudice
13 Respondent because the Court will retain jurisdiction over all remaining issues and the statutory
14 protections under Family Code section 2337 will continue to protect both parties' interests.”

15 10) Per the Proof of Service filed 7/21/2026, Mother’s Request for Order filed 7/21/2026 including
16 the attachments were emailed to Father on 7/21/2026.

17 11) On 7/31/2026, Father filed a declaration stating that he developed an acute respiratory illness on
18 or about 7/10/2026 or 7/11/2026. Father states that as of 7/26/2026 he continued to experience
19 throat pain, coughing, headache, weakness, and blood or blood-streaked mucus. Father states that
20 this illness affected him during the principal preparation period for the August 6 hearing and
21 hindered his ability to seek free, self-help, limited-scope, or other procedural or legal assistance.
22 Father requests a continuance of the 8/6/2026 hearing; however Father states he remains prepared
23 to appear on 8/6/2026 and that if his symptoms persist and the hearing proceeds, he requests
24 permission to appear remotely and take reasonable breaks as needed. Father also states that he
25 received Mother’s recently filed pleadings. Father states Mother has not yet produced: “(a) any
26 statement for the Schwab account identified as community property, the Bank of
27 America/Strategies Group account identified as community property, the Wells Fargo/Strategies
28 Group account identified as community property, the Kraken account identified as separate
29 property, or the Coinbase account identified as separate property; (b) pages 2 through 6 of the

1 Bank of America statement for accounts ending 0054 and 1736, or the remaining pages of the
2 Chase and Citi credit-card statements; (c) a current Fidelity holdings or balance statement, rather
3 than the 2025 tax-reporting document Petitioner produced; (d) any Madison Traditional IRA or
4 Roth IRA statement later than March 31, 2026; or (e) an account-specific list explaining why the
5 later or missing records were not produced.” Father states, “The missing, incomplete, or outdated
6 information affects my ability to evaluate proposed protective conditions and determine whether
7 listed community, investment, retirement, trust, and debt interests require safeguards before
8 marital status is terminated. I am not using this request to seek a new order compelling broad
9 discovery. I ask for adequate preparation time and for compliance with the disclosure obligations
10 the Court already imposed on June 30.”

11 **B. Findings and Order**

- 12 1) Father’s request for a continuance is denied as the Court finds that Father substantively and
13 meaningfully responded to Mother’s additional pleadings filed 7/21/2026. Moreover, the Court
14 finds that any potential prejudice to Father from entry of a status-only judgment is adequately
15 addressed by the statutory protections imposed pursuant to Family Code section 2337(c) in
16 addition to the Court’s express reservation of jurisdiction over all remaining issues.
- 17 2) No later than 8/30/2026, Mother shall serve on Father the following additional items he has
18 identified are missing from Mother’s initial disclosure:
 - 19 a. Any statement for the Schwab account identified as community property;
 - 20 b. The Bank of America/Strategies Group account identified as community property;
 - 21 c. The Wells Fargo/Strategies Group account identified as community property;
 - 22 d. The Kraken account identified as separate property;
 - 23 e. The Coinbase account identified as separate property;
 - 24 f. Pages 2 through 6 of the Bank of America statement for accounts ending 0054 and 1736;
 - 25 g. The remaining pages of the Chase and Citi credit-card statements;
 - 26 h. A current Fidelity holdings or balance statement (rather than the 2025 tax-reporting
27 document Father states Mother previously produced)
 - 28 i. Any Madison Traditional IRA or Roth IRA statement later than 3/31/2026

1 3) The Court finds:

- 2 a. Mother filed a Petition requesting Dissolution of Marriage on 5/30/2025, citing
3 irreconcilable differences.
- 4 b. Father filed a Response on 7/9/2025 stating that he denies the grounds supporting
5 Mother's request for dissolution set forth in the Petition.
- 6 c. Under Family Code section 2339(a), the Court first acquired jurisdiction over Father
7 when Father was personally served with the Petition and Summons on 6/8/2025.
- 8 d. Within the Petition and Response, both parties indicate they were residents of California
9 for at least six months and of San Francisco County for at least three months immediately
10 preceding the filing of the Petition.
- 11 e. On 8/14/2025 and on 6/15/2026, Mother filed a Declaration Regarding Service of
12 Declaration of Disclosure stating that her Preliminary Declaration of Disclosure was
13 served on Father by email on 8/14/2025 and 6/15/2026.
- 14 f. Mother has stated under penalty of perjury that there are no pension or retirement plans in
15 which the community has an interest. Mother identifies two IRA accounts that she
16 contends are her separate property. Even assuming, without deciding, that the community
17 has an interest in those IRA accounts, the Court finds they are not the type of retirement
18 plans requiring joinder under Family Code section 2337(d). The characterization and
19 division of those accounts remain reserved.
- 20 4) Based on the foregoing, Mother's request to bifurcate and terminate the parties' marital status is
21 GRANTED with the protections set forth below. Each party is restored to their previous single
22 status as of 8/6/2026. The Court finds this termination date meets the requirement set forth in
23 Family Code section 2339(a).
- 24 5) As set forth in the attached Bifurcation of Status of Marriage or Domestic Partnership (FL-347),
25 the protections of Family Code section 2337(c)(1)-(6) shall apply against Mother until judgment
26 is entered and becomes final on all remaining issues.
- 27 6) The parties are reminded that despite the termination of their marital status, the Standard Family
28 Law Restraining Orders set forth in the Summons continue to apply to both parties per Family
29 Code section 233(a).

1 7) The Court's jurisdiction to adjudicate all remaining issues in this dissolution matter is reserved
2 under Family Code section 2337(f).

3 8) The Court will prepare the Findings and Order After Hearing as well as the Status Only Judgment
4 and Notice of Entry of Judgment.

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BIFURCATION OF STATUS OF MARRIAGE OR DOMESTIC PARTNERSHIP

ATTACHMENT TO ☐ JUDGMENT (FL-180) ☒ FINDINGS AND ORDER AFTER HEARING (FL-340)

The court grants the request of ☒ petitioner ☐ respondent to bifurcate and grant a separate trial on the issue of the dissolution of the status of the marriage or domestic partnership apart from other issues.

Date marital or domestic partnership status ends (specify): 8/6/2026

THE COURT FINDS

1. A preliminary declaration of disclosure with a completed schedule of assets and debts and income and expense declaration has been served on the nonmoving party, or the parties have stipulated in writing to defer service of the preliminary declaration of disclosure until a later time.
2. Each retirement or pension plan of the parties has been joined as a party to the proceeding for dissolution unless joinder is precluded or made unnecessary by applicable law.

THE COURT ORDERS

3. a. To preserve the claims of each party in all retirement plan benefits on entry of judgment granting a dissolution of the status of the marriage or domestic partnership, the court makes one of the following orders for each retirement plan in which either party is a participant:
 - (1) A final domestic relations order or qualified domestic relations order under Family Code section 2610 disposing of each party's interest in retirement plan benefits, including survivor and death benefits.
 - (2) An interim order preserving the nonemployee party's right to retirement plan benefits, including survivor and death benefits, pending entry of judgment on all remaining issues.
 - (3) A provisional order on *Pension Benefits—Attachment to Judgment* (form FL-348) incorporated as an attachment to the judgment of dissolution of the status of marriage or domestic partnership (*Judgment (Family Law)* (form FL-180)). This order provisionally awards to each party a one-half interest in all retirement benefits attributable to employment during the marriage or domestic partnership.

b. Name of plan:

Type of order attached

3a(1) 3a(2) 3a(3)

☐ ☐ ☐

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☐ See attachment 3b for additional plans.

- c. The moving party must promptly serve on the retirement or pension plan administrator a copy of any order entered under items a and b above and a copy of the judgment granting dissolution of the status of the marriage or domestic partnership (form FL-180).
4. Jurisdiction is reserved for later determination of all other pending issues in this case.
5. The court makes the following additional orders as conditions for granting the severance on the issue of dissolution of the status of marriage or domestic partnership. In the case of the moving party's death, the order continues to be binding on that moving party's estate and will be enforceable against any asset, including the proceeds thereof, to the same extent that these obligations would have been enforceable before the person's death.
 - a. ☒ **Division of property**
The ☒ petitioner ☐ respondent must indemnify and hold the other party harmless from any ☒ taxes, ☒ reassessments, ☒ interest, and ☒ penalties payable by the other party in connection with the division of the community estate that would not have been payable if the parties were still married or domestic partners at the time the division was made.

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5. b. ☒ **Health insurance**

Until judgment has been entered on all remaining issues and has become final, the ☒ petitioner ☐ respondent must maintain all existing health and medical insurance coverage for the other party, and that party must also maintain any minor children as named dependents, as long as that party is eligible to do so. If at any time during this period the ☒ petitioner ☐ respondent is not eligible to maintain that coverage, that party must, at his or her sole expense, provide and maintain health and medical insurance coverage that is comparable to the existing health and medical insurance coverage to the extent it is available.

If that coverage is not available, the ☒ petitioner ☐ respondent is responsible for paying the health and medical care for the other party and the minor children to the extent that care would have been covered by the existing insurance coverage but for the dissolution of marital status or domestic partnership, and will otherwise indemnify and hold the other party harmless from any adverse consequences resulting from the loss or reduction of the existing coverage. "Health and medical insurance coverage" includes any coverage under any group or individual health or other medical plan, fund, policy, or program.

c. ☒ **Probate homestead**

Until judgment has been entered on all remaining issues and has become final, the ☒ petitioner ☐ respondent must indemnify and hold the other party harmless from any adverse consequences to the other party if the bifurcation results in a termination of the other party's right to a probate homestead in the residence in which the other party resides at the time the severance is granted.

d. ☒ **Probate family allowance**

Until judgment has been entered on all remaining issues and has become final, the ☒ petitioner ☐ respondent must indemnify and hold the other party harmless from any adverse consequences to the other party if the bifurcation results in the loss of the rights of the other party to a probate family allowance as the surviving spouse or surviving domestic partner.

e. ☒ **Retirement benefits**

Except for any retirement plan, fund, or arrangement identified in any order issued and attached as set out in paragraph 3, until judgment has been entered on all remaining issues and has become final, the ☒ petitioner ☐ respondent must indemnify and hold the other party harmless from any adverse consequences to the other party if the bifurcation results in the loss of the other party's rights with respect to any retirement, survivor, or deferred compensation benefits under any plan, fund, or arrangement, or to any elections or options associated with them, to the extent that the other party would have been entitled to those benefits or elections as the spouse or surviving spouse or the domestic partner or surviving domestic partner of the moving party.

f. ☒ **Social security benefits**

The moving party must indemnify and hold the other party harmless from any adverse consequences if the bifurcation results in the loss of rights to social security benefits or elections to the extent the other party would have been entitled to those benefits or elections as the surviving spouse or surviving domestic partner of the moving party.

g. ☐ **Beneficiary designation - Nonprobate transfer**

Attachment 5(g), Order Re: Beneficiary Designation for Nonprobate Transfer Assets, will remain in effect for each covered asset until the division of any community interest therein has been completed.

h. ☐ **Individual Retirement Accounts**

Attachment 5(h), Order Re: Division of IRA Under Internal Revenue Code Section 408(d)(6), has been issued to preserve the ability of ☐ petitioner ☐ respondent to defer distribution of his or her community interest on the death of the IRA owner.

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5. i. ☐ **Enforcement of community property rights**

Good cause exists to make additional orders as set out in Family Code section 2337(c)(9). See Attachment 5(i).

j. ☐ **Other conditions that are just and equitable**

Other:

6. Number of pages attached:

WARNING: *Judgment (Family Law)* (form FL-180) (status only) must be completed in addition to this form for the status of the marriage or domestic partnership to be ended.